

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

Courtroom Clerk:

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

November 5, 2025

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED & WILL BE PUNISHED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 **and**
- (2) Other side by phone or email if you will appear at the hearing to contest the tentative

If you fail to notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted as the final ruling. (C.R.C. 3.1308(a)(1) and Local Rule 8.E.)

APPEARANCES

The Court highly encourages in-person appearances for all matters.

The Court strongly discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above guidance, you still choose to appear remotely in Department 16 then you ***must*** use video and follow Local Rule 5. If for any reason you do not like our Court's new Unicorn Digital Courtroom ("UDC") video system for remote appearances, ***then come to D16 in person.*** To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml Note that when using UDC you must *separately* register for each case in which you are appearing remotely. If by any chance you find the UDC too cumbersome, ***then you are welcome to come to D16 in person.***

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	20CV372924	<i>Borton Petrini, LLP v. Bruce Keiser</i>	Hearing: Order of Examination On September 11, 2025, Judge Hayashi Ordered the Defendant Judgment Debtor Bruce Keiser (the “Judgment Debtor”) to appear personally in Department 16 to give information regarding a money judgment against him on November 5, 2025 at 9:01 AM in Department 16 (the “Order of Examination”). However, on October 24, 2025, Judgment Creditor Borton Petrini, LLP (the “Judgment Creditor”) requested a continuance of this Hearing on this Examination because the Judgment Creditor has not yet been able to serve the Order of Examination on the Judgment Debtor. Accordingly, to give the Judgment Creditor more time to serve the Judgment Debtor with the Order of Examination, this Hearing is hereby continued until March 25, 2026 at 9:01 in Department 16. Accordingly, Judgment Debtor Bruce Keiser ORDERED to appear in person on March 25, 2026 at 9:01 AM in Department 16 for this Examination. The Judgment Creditor is to give Notice to the Judgment Debtor to appear in person on March 25, 2026 at 9:01 AM in Department 16 for this Examination.

9:01 2	18CV338192	<i>Republic Services of Sonoma County, Inc. v. Ryan Peacock Inc. et al.</i>	Order on Motion by Defense Counsel to be Relieved as Counsel For Defendant Ryan Peacock Inc. Defense counsel Carl I. S. Mueller of Mueller Christensen LLP moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Defendant Ryan Peacock Inc. et al. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. After this hearing, the Court will sign and file the Proposed Order that has already been prepared by defense counsel and filed with this Motion.
9:01 3	24CV446642	<i>Lilliana Delgado v. Carnitas El Rincon Inc. et al.</i>	Order on Motion by Defense Counsel To Be Relieved as Counsel for Defendants Carnitas El Rincon Inc. et al. Defense counsel Joe A. Nunez of Westford Law Group, APC, moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Defendants Carnitas El Rincon Inc. et al. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. After this hearing, the Court will sign and file the Proposed Order that has already been prepared by defense counsel and filed with this Motion.
9:01 4			

9:00 <u>1</u>	25CV459211	<i>De La Cruz v. General Motors, LLC, et al.</i>	Order on Defendant’s Demurrer to Complaint Defendant General Motors, LLC (“GM”) filed this Demurrer against all Causes of Action in Plaintiff’s Complaint. This Demurrer was duly noticed and set to be heard in this Court on November 5, 2025. However, on October 24, 2025, Plaintiff exercised its right to file a First Amended Complaint under C.C.P. § 472(a). As Plaintiff has timely filed a First Amended Complaint, the Demurrer to the original Complaint is moot. Accordingly, the Court OVERRULES without prejudice Defendant’s Demurrer to the original Complaint. GM shall answer, demur or otherwise respond to the First Amended Complaint within the time permitted by the Code of Civil Procedure. Plaintiff De La Cruz is to prepare and file a formal order after this hearing.
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9:00 <u>2</u>	24CV449543	<i>Jet Insurance Company v. Ryan Gordon et al.</i>	Order on Motion for Discharge and Dismissal of Surety Under License Bond, For a Restraining Order, and for Costs Plaintiff Jet Insurance Company (“Plaintiff”) moves for an Order: 1. Discharging Plaintiff because its payment of the proceeds of Contractor’s License Bond No. JToo7951 (the “Bond”) constitutes a full discharge of all the liability of Plaintiff under C.C.P. § 996.490(a); 2. That all parties to this action are restrained from instituting or further prosecuting any other proceeding in any other court in the State of California, or any other jurisdiction, affecting the rights and obligations between the parties to the interpleader lawsuit filed in Santa Clara County Superior Court Case No. 24CV449543 under C.C.P. § 386(f); and 3. That Plaintiff receive its reasonable costs of \$459.35 under C.C.P. § 386.6, which shall be disbursed to Plaintiff from the remaining Bond funds; and that the remainder of the proceedings pending the outcome of this litigation be disbursed upon further order and at the direction of this Court. Mot. at p. 2 (“the Motion”). The Motion is well grounded in the law, well supported by the facts, and reasonable in all respects. Defendants have not filed any Opposition to the Motion. “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).
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			Accordingly, Plaintiff's Motion is GRANTED in all respects. Plaintiff is to prepare and file a formal order after this hearing.
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9:00 3	25CV458977	<i>Lumenis Be, Inc. v. Dr. Iris Cruz</i>	Order on Motion to Confirm Arbitration Award and Enter Judgment Thereon Petitioner Lumenis Be, Inc. (“Petitioner”) moves for an Order: 1. Confirming the final arbitration award, dated November 21, 2024 in favor of Petitioner and against Respondent Dr. Iris Cruz, aka Dr. Iris M. Cruz Navarro (“Respondent”) under C.C.P. §§ 1285 <i>et seq.</i>; and 2. Entering Judgment in the amount of \$290,131.64 <i>plus</i> interest damages of \$42,731.56 <i>plus</i> attorneys’ fees of \$1,935.00, for a total Judgment of \$334,798.20 in favor of Petitioner and against Respondent. Mot. at pp. 2 & 10 (“the Motion”). The Motion is well grounded in the law, well supported by the facts, and reasonable in all respects. Respondent has not filed any Opposition to the Motion. “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c). Accordingly, Petitioner’s Motion is GRANTED in all respects. Petitioner is to prepare and file a formal order after this hearing.
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9:00 4	25CV461808	<i>Gloria Guohang Zhang et al. v. BioVision Inc. et al.</i>	Order on Petition to Confirm the Arbitration Award and Enter Judgment Thereon See Line 4 below for complete tentative ruling. The Court will prepare and file the formal order after the hearing.
9:00 5	25CV461808	<i>Gloria Guohang Zhang et al. v. BioVision Inc. et al.</i>	Order on Respondent's Motion to Vacate the Arbitration Award or, in the Alternative, to Correct the Arbitration Award See Line 5 below for complete tentative ruling. The Court will prepare and file the formal order after the hearing.
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9:00 14			
9:00 15			

Line 1

Line 2

Line 3

Line 4

Case Name: *Gloria Guohang Zhang et al. v. BioVision Inc. et al.*

Case No.: 25CV461808

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Petitioners Gloria Guohang Zhang (“Zhang”) and Gordon Gouchen Yan (“Yan”) (collectively, “the Petitioners”) move the Court for an Order:

1. Confirming the Final Arbitration Award, dated February 19, 2025 (the “Award”) in favor of Petitioners and against Respondents BioVision, Inc. and Abcam U.S. Group Holdings, Inc. (collectively, the “Respondents”) under C.C.P. 1285 *et seq.*; and
2. Entering Judgment in the amount of \$6,026,000.65 (\$3,013,000.12 for each Petitioner) which consists of \$4,766,335.70 (\$2,383,167.85 for each Petitioner) in actual damages *plus* \$1,243,165.94 (\$621,582.97 for each Petitioner) in pre-Award interest *plus* \$16,499.01, in favor of Petitioners and against Respondents. On top of that total award of \$6,026,000.65, Petitioners are also entitled to post-Award interest in the amount of \$1,659.96 (\$829.98 for each Petitioner) per day from February 19, 2025 (the date of the Award) until the date that the Award is satisfied or Judgment is entered.

Petition at 4. This amount that Petitioners seek in this Judgment is exactly what was awarded to them by Arbitrator Dana Welch in the February 19, 2025 Award. Award at p. 26 (attached as Ex. 7 to Petition).

In Respondents’ accompanying Motion under CCP §§ 1286.2(a)(4) & 1286.6(b) to Vacate or, in the Alternative, Correct the Award, Respondents argue that the Arbitrator exceeded her powers because she incorrectly interpreted and applied the statutory exception of Section 16601 to the general public policy against non-competes in Section 16600 of Business and Professions Code. MPA ISO Mot. to Vacate at 6 & 9-11. But for all the reasons set forth in the Court’s accompanying Order DENYING Respondent’s Motion to Vacate or, in the Alternative, Correct the Award, that argument fails. As the Legislature created an express exception in Section 16601 to the general policy of Section 16600, the Arbitrator did not violate this policy by interpreting and applying Section 16601—regardless of whether Respondents agree with that interpretation and application. As the Arbitrator did not violate public policy by the Award, Respondents’ sole ground that the Arbitrator exceeded her powers by the Award fails. And as the Arbitrator did not exceed her powers by the Award, there is no basis for this Court to review the Award under CCP §§ 1286.2(a)(4) or 1286.6(b). *SingerLewak LLP v. Gantman*, 241 Cal. App. 4th 610, 622 (2015); *Board of Education v. Round Valley*

Teachers Assn., 13 Cal. 4th 269, 276 (1996); *Aguilar v. Lerner*, 32 Cal. 4th 974, 981 (2004)).

While Respondents' accompanying Motion to Vacate or, in the Alternative, Correct the Award being baseless and DENIED, in contrast Petitioners' Motion to Confirm the Award is well grounded in the law, well supported by the facts, reasonable in all respects.

Accordingly, the Court **GRANTS** Petitioners' Motion to:

1. Confirm the Final Arbitration Award, dated February 19, 2025, in favor of Petitioners and against Respondents BioVision, Inc. and Abcam U.S. Group Holdings, Inc. and
2. Enter Judgment in the amount of \$6,026,000.65 (\$3,013,000.12 for each Petitioner) which consists of \$4,766,335.70 (\$2,383,167.85 for each Petitioner) in actual damages *plus* \$1,243,165.94 (\$621,582.97 for each Petitioner) in pre-Award interest *plus* \$16,499.01, in favor of Petitioners and against Respondents. On top of that total award of \$6,026,000.65, Petitioners are also entitled to post-Award interest in the amount of \$1,659.96 (\$829.98 for each Petitioner) per day from February 19, 2025 (the date of the Award) until the date that the Award is satisfied or Judgment is entered.

IT IS SO ORDERED.

Date: November 5, 2025

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Gloria Guohang Zhang et al. v. BioVision Inc. et al.*

Case No.: 25CV461808

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Respondents BioVision, Inc. and Abcam U.S. Group Holdings, Inc. (collectively, the “Respondents”) move under C.C.P. § 1286.2 for an Order vacating the Final Arbitration Award, dated February 19, 2025 (the “Award”) that was entered in favor of Petitioners Gloria Guohang Zhang (“Zhang”) and Gordon Guochen Yan (“Yan”) (collectively, “the Petitioners”). In the Alternative, Respondents move under C.C.P. § 1286.6 for an Order correcting the Award.

The plain text of Sections 1286.2(a)(4) and 1286.6(b)—which Respondents invoke to vacate or, in the Alternative, correct the Award—expressly hinges on whether the Arbitrator “exceeded [her] powers.” CCP. §§ 1286.2(a)(4) & 1286.6(b). So here, if the Arbitrator did not exceed her powers in the Award then this Motion under 1286.2(a)(4) and 1286.6(b) would be baseless and fail.

Respondents’ argument that the Arbitrator exceeded her powers goes like this:

1. An arbitrator exceeds her powers if the Award violates public policy.
2. Non-compete agreements are generally unenforceable as a matter of public policy under Bus. & Prof. Code § 16600.
3. The Arbitrator interpreted and applied Section 16601’s statutory exception to this policy of Section 16600 by finding that the non-competes here were entered into in conjunction with the sale of BioVision business. Bus. & Prof. Code § 16601.
4. The Arbitrator is wrong as a matter of interpretation and application because (Respondents argue) the non-competes here do not fall within the statutory exception of Section 16601.
5. Respondents conclude: “Therefore, the Secondary Non-Compete Agreements do not fall within the statutory exception outlined in section 16601 *and are in violation of California’s well-defined public policy.*”

MPA ISO Mot. to Vacate at 6 & 9-11 (emphasis added).

But there is a false premise in Respondent’s argument: that if the Arbitrator incorrectly interpreted and applied Section 16601 “therefore” the Arbitration violated the policy of 16600. The premise is false as a matter of logic and law for all the reasons

explained in the Court of Appeal decision in *SingerLewak LLP v. Gantman*, 241 Cal. App. 4th 610 (2015) that is directly on point:

[T]he policy embodied in section 16600 has exceptions, and this case concerned one of those exceptions. . . . [W]e do not find that the arbitrator's award, even if incorrect in its interpretation and application of section 16602, contravened an explicit legislative express of public policy that undermined the presumption in favor of private arbitration. While there is undeniably an explicit express of public policy embodied in Section 16600, section 16602 *creates an exception to this policy*, and that provision governed this case.

SingerLewak LLP, 241 Cal. App. 4th at 624 (emphasis added) (internal citations omitted). Just as *SingerLewak LLP* involved application of the statutory exception of 16602 that creates an exception to the public-policy of 16600, this case involves the application of the statutory exception of 16601 that likewise “creates an exception to this policy.” *Id.*; see Petitioners’ Opp to Mot. to Vacate at 5-8.

While Respondents strenuously object to how the arbitrator interpreted and applied Section 16601 MPA ISO Mot. to Vacate at 6 & 9-11, the interpretation and application of Section 16601 were contested issues submitted to the Arbitrator for decision. Award at 19-21. Her “resolution of those issues is what the parties bargained for in the arbitration agreement.” *SingerLewak LLP*, 241 Cal. App. 4th at 624 (citing *Moncharsh v. Heily & Blasé*, 3 Cal. 4th 1, 6, 28 (1992)(California Supreme Court holding that “an arbitrator’s decision is not generally reviewable for errors of fact or law, whether or not such error appears on the face of the award and causes substantial injustice to the parties” and that “[i]t is well settled that arbitrators do not exceed their powers merely because they assign an erroneous reason for their decision.”).

In light of *SingerLewak* and *Moncharsh*, Respondents’ argument that the Arbitrator exceeded her powers here fails. Regardless of how strongly Respondents believe that that the Arbitrator incorrectly interpreted and applied Section 16601, the Arbitrator’s interpretation and application of this statutory exception that our Legislature has created and blessed as an exception to the public policy of Section 16600 is not a violation of this same policy. *SingerLewak LLP*, 241 Cal. App. 4th at 624; *Moncharsh v. Heily & Blasé*, 3 Cal. 4th at 28.

As the Arbitrator’s award did not violate public policy under Section 16600 by applying an explicit legislative exception to that same policy under Section 16601, the Arbitration did not exceed her powers within the meaning of Code of Civil Procedure Sections 1286.2(a)(4) and 1286.6(b). *SingerLewak LLP*, 241 Cal. App. 4th at 622 (citing *Richey v. AutoNation Inc.*, 60 Cal. 4th 909, 916) (2015)). And because the Arbitrator did not exceed her powers here, this Award is not reviewable—that is the end of the matter and this Court will not proceed to “step two” to second-guess whether the Award should be upheld or corrected. *SingerLewak LLP*, 241 Cal. App. 4th at 622 (explaining the “two-step process” to evaluating challenges to an arbitration award under *Board of*

Education v. Round Valley Teachers Assn., 13 Cal. 4th 269, 276 (1996) and *Aguilar v. Lerner*, 32 Cal. 4th 974, 981 (2004)).

The bottom line is that because the Arbitrator here did *not* exceed her powers in the Award, judicial review of that Award is inappropriate and groundless under Code of Civil Procedure Sections 1286.2 and 1286.6 that would only be triggered if and when the Arbitrator “exceeded [her] powers.” CCP. §§ 1286.2(a)(4) & 1286.6(b).

Accordingly, Respondents’ Motion to Vacate or, in the Alternative, Correct the Arbitration Award is **DENIED** without prejudice in all respects.

IT IS SO ORDERED.

Date: November 5, 2025

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Line 7

Line 8

Line 9

Line 10

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